

HOUSE No. 3134

The Commonwealth of Massachusetts

PRESENTED BY:

Steven S. Howitt

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to a senior citizen volunteer property tax reduction.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Steven S. Howitt</i>	<i>4th Bristol</i>	<i>1/14/2025</i>

HOUSE No. 3134

By Representative Howitt of Seekonk, a petition (accompanied by bill, House, No. 3134) of Steven S. Howitt for legislation to establish a senior citizen volunteer property tax reduction. Revenue.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2835 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to a senior citizen volunteer property tax reduction.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 59 of the General Laws, as appearing in the 2022 Official Edition, is hereby
2 amended by inserting, after Section 5N, the following new section:-

3 Section 5O. In any city or town which accepts this section, the board of selectmen of a
4 town, or in a municipality having a town council form of government, the town council or the
5 mayor, with the approval of the city council in a city, may establish a program to allow senior
6 citizens over the age of 70 to volunteer to provide services to that city or town. In exchange for
7 such volunteer services, the city or town shall reduce the real property tax obligations of that
8 senior on the individual's tax bills and that reduction shall be in addition to any exemption or
9 abatement to which that person is otherwise entitled; provided, however, that person shall not
10 receive a rate of, or be credited with, more than the current minimum wage of the commonwealth

per hour for the services provided pursuant to that reduction; and provided further, that the reduction of the real property tax bill shall not exceed \$1,000 in a given tax year. It shall be the responsibility of the city or town to maintain a record for each taxpayer including, but not limited to, the number of hours of service and the total amount by which the real property tax has been reduced and to provide a copy of that record to the assessor in order that the actual tax bill reflect the reduced rate. A copy of that record shall also be provided to the taxpayer prior to the issuance of the actual tax bill. The cities and towns shall have the power to create local rules and procedures for implementing this section in a way that is consistent with the intent of this section. Nothing in this section shall be construed to permit the reduction of workforce or otherwise replace existing staff.

The amount by which a person's property tax liability is reduced in exchange for the volunteer services shall not be considered income, wages or employment for purposes of taxation as provided in Chapter 62, for the purposes of withholding taxes as provided in Chapter 62B, for the purposes of workers' compensation as provided in chapter 152 or any other applicable provisions of the General Laws. While providing such volunteer services, that person shall be considered a public employee for the purposes of Chapter 258 and those services shall be deemed employment for the purposes of unemployment insurance as provided in Chapter 151A.

A city or town, by vote of its legislative body, subject to its charter, may adjust the exemption in this clause by: (i) allowing an approved representative for persons physically unable to provide such services to the city or town; or (ii) allowing the maximum reduction of the real property tax bill to be based on 125 volunteer service hours in a given tax year, rather than \$1,000.